MAINTENANCE
Article 12 Basics



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Training Overview

- Introduction to Article 12
- Submitting Information Requests
- eWHEP & Mechanized Staffing
- MS-1 & Building-Side Staffing
- FMO / Field Maintenance Staffing
- Maintenance Support Clerk Staffing
- Article 38.3.K.4 & Vacancies
- Overtime Usage & CWHR Report
- Miscellaneous Mitigating Factors

What is Article 12?

- Principles of Seniority, Posting and Reassignments
- Contains language on probationary periods and reassignments
- Article 12.5.C.4 – excessing outside a section (LMOU may define section)
- Article 12.5.C.5 – excessing outside of the craft and/or installation
- Article 12 excessing requires 6 months advance notification
- Regional / Area meeting required no less than 90 days prior to excessing, and 6 months prior when possible
- CBA Article 12 Link – JCIM Article 12 Link

Article 12 – Requisite Notifications

JCIM ARTICLE 12.4 (REASSIGNMENT, GENERAL PRINCIPLES)

AREA/REGIONAL NOTIFICATION (12.5.C.5)

Meetings with the Union at the Area/Regional Level are required no less than 90 days (six (6) months if possible) in advance of any anticipated reassignments from an installation under Article 12. In such case, the Union will be advised of the following: 1. The anticipated impact, by craft, 2. The installations with available residual vacancies for the employees to be reassigned, 3. When a new installation is involved, the new installation's anticipated complement by tour and craft. The above information must be updated periodically and provided to the Union at the Area/Regional Level.

Article 12 – Requisite Notifications

JCIM ARTICLE 12.5.C.4

LOCAL NOTIFICATION

When it is proposed to reassign within an installation employees excess to the needs of a section, Union notification shall be at the Local Level (as much as six (6) months in advance when possible), pursuant to Article 12.5.B.4. The identification of assignments comprising a section is determined through the local implementation procedure (see Article 30.B.18).

Article 12 – Requisite Notifications

JCIM ARTICLE 12.5.B

EMPLOYEE NOTIFICATION

When excessing from the installation, the Postal Service will provide a minimum of 60 days general advance notice to the potentially impacted employees and a minimum of 30 days specific advance notice to the impacted employees, that will include the identification of their placement selection and the report date. If the excessing is outside the installation and within 50 miles, the impacted employee will be provided at least a 30-day written notice of the awarded duty assignment prior to the moving date, unless the parties agree to a shorter period.

Article 12.4

“A primary principle in effecting reassignments will be that dislocation and inconvenience to employees in the regular workforce shall be kept to a minimum.”



What should the local union do when notified?



Investigate and submit information requests



Confirm accuracy of the maintenance staffing packages

What staffing packages must be requested?

eWHEP:
Mail Processing Equipment
ET, MPE, MM7

MS-1:
Building Side
BEM, MM7

MS-47:
Custodial Related
Level 4 CL, BMC, CGL

FMO:
Field Maintenance
Area Maintenance Tech

MSC:
Maint. Support Clerks
MSC MMO Matrix

eMARS:
Not Staffing Package
Contains Information

Information Requests & Why (1 of 2)

- Current, approved staffing packages (to include all forms)
- Current, approved eMARS Staffing Worksheets within installation
- Copy of site staffing package history (submitted vs. approved)
- Copies of all emails / communication regarding the staffing package
- Identify all vacant duty assignments and provide all seniority lists
- Identify mail processing equipment added or removed

Information Requests & Why (2 of 2)

- Identify all retirement eligible maintenance employees
- Identify all veteran preference eligible maintenance employees
- Copies of overtime usage reports for impacted occupational groups
- Identify all ill / injured employees reassigned into maintenance craft
- Identify all maintenance employees with eReassign requests

- *Critical to submit RFI's more than once, and grieve / NLRB if necessary*

eWHEP Staffing & Article 12

INVESTIGATE

Accuracy of staffing package inventory

Accuracy of operational use (tours)

Accuracy of frequency of use (days)

Accuracy of equipment stackers

eWHEP - MMO-125-20

2A Inventory Form
Miscellaneous Postal Equipment

2B Inventory Form
Major Mechanization / Automation

2C Inventory Form
Miscellaneous Requirements

eMARS Staffing Worksheets
Identifies tours / days of use, stackers

MS-1 Staffing & Article 12

INVESTIGATE

Accuracy of staffing package inventory

Site MS-1 Staffing Package History

How many submissions vs. rejections

What was rejected? Why?

Local management overruled by HQ

Local Fact Circumstance / Manufacturer

MS-1 - MMO-057-21

MS-1 Staffing Forms
4893 – Workhour Summary
4893B – Supplemental Justification
4894 – Operational Maintenance
4895 – Central Chill Water OM
4896 – Supplemental Requirement
4896A – Preventive Maintenance

MS-1 MMO's
MMO-057-21, MMO-008-20, MMO-099-18

Field Maintenance Staffing & Article 12

INVESTIGATE

Accuracy of staffing package hours

Sum total of all lines on staffing form

Based on 13 previous accounting periods

Work Hours, Overtime, Non-FMO Hours

Travel Time, Record Keeping, etc.

FMO STAFFING DOCUMENT

Variables

eMARS data from FMO paperwork

Handwritten records

Interviews, Statements

Critical that our AMTs fill out paperwork

“Junk in, Junk out”

Maintenance Support Staffing & Article 12

INVESTIGATE

Accuracy of staffing packages overall

Based solely on # of supported positions

If other staffing inaccurate, less positions

Management officials do not count

Does not include S&B maint. employees

NDCs allotted 1 additional MSC

MSC - MMO-125-20

Number of Supported Positions

0-19 = 0
20-39 = 1
40-59 = 2
60-79 = 3
80-100 = 4
101-125 = 5
126-150 = 6
… and so on.



Article 38.3.K and Article 38.3.K.4

- Article 38.3.K addresses Excess Employees in the Maintenance Craft
- Article 38.3.K.4: Employees cannot be excessed if there are lower-level vacancies
- Article 38.3.K.4 was new language negotiated into the 2015 National Agreement

Article 38.3.K.4

- Maintenance Craft employee being considered for excessing under Article 12 will not be excessed if a vacant lower-level position exists and:

  a. the vacant lower level position is supported by the current approved staffing package; and

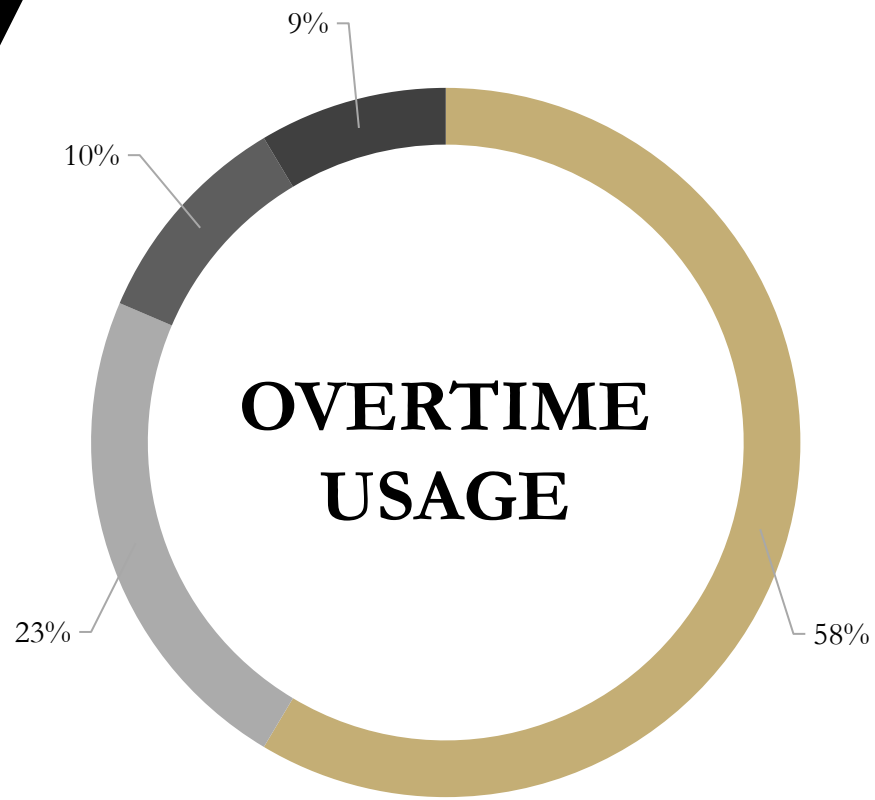
- b. the duties and responsibilities of the vacant lower level position are encompassed by the employee's current position as per the following:

- i. Electronic Technician (ET) PS-10 encompasses Mail Processing Equipment Mechanic (MPE) PS-9 and Maintenance Mechanic (MM) PS-7;

- ii. Mail Processing Equipment Mechanic (MPE) PS-9 and Building Equipment Mechanics (BEM) PS-9 encompass Maintenance Mechanic (MM) PS-7.

- c. if the excessing is occurring under Article 12.5.C.4, Item b above will be applied on tour-wide basis.

What is the Comparative Workhour Report?



Assuming employees are excessed outside of their craft and/or installation, 45 days after any involuntary reassignments, the Regional Coordinator will be provided with the CWHR (Comparative Work Hour Report).

Comparative Workhour Report

The JCIM requires the following:

“This report no longer has to be requested by the Union. When employees are excessed out of their craft or installation, the Union at the regional level shall be provided with a comparative work hour report of the losing craft or installation forty-five (45) days, whenever possible, after the excessing of any APWU represented employee outside either their craft or their installation.”

“The report provides a listing of all work hours used on a daily basis in the affected craft for the period of thirty days before and thirty days after the reassignments. If the report does not indicate that conditions warranted the reassignments, the retreat rights of the affected employees shall be activated. If the retreat rights are denied, the employees have the right to initiate a grievance per Article 15."

Miscellaneous Factors:

Priority Transfers

Limited Duty employees must be returned to their craft prior to any excessing.

Priority Transfers

In a 12.5.C.5 excessing event, all employees in the affected craft have priority transfer status.

Retirements

Retirement eligible employees can be used to mitigate or cancel excessing events.

Overtime Usage

Continued and excessive OT leading up to the excessing is a sign that the excessing event is not necessary.

Sufficient Tour Credit

Investigate and ensure that we are receiving sufficient credit for the number of tours machines are in operation.

New Program!

The Maintenance Division is unveiling a new program to assist locals in determining whether they are receiving sufficient credit for operational tours.

Used to take weeks to review 10,000 pages of WebEOR reports. Now it takes 5 minutes!

Program is on flash drive!



National Staffing Advocates

Web Site
apwu.org/staffing

Contact NBA
NBAs can assist with staffing

Email
maintstaff@apwu.org

Phone
(202) 842-4213

